

9:00 A.M.

Calendar Line # 1

Case Name In the Matter of: Estate of Weiwei Hsieh

Case No. 23PR194132

Petition for Order Award Costs, Reimbursement, and Return of Beneficiary Funds against Respondent H.W. Spencer Hsieh

I. BACKGROUND

Petitioner Andrey Jivsov (“Petitioner”) initiated this case by filing a petition to probate a purported will of WeiWei Hsieh (“Decedent”) signed in 2020. The petition was not opposed and on April 6, 2023, the court admitted Petitioner’s proffered will to probate and issued letters testamentary. The 2020 will leaves the entirety of the estate to Fiona Jivsov (“Fiona”), Petitioner’s and Decedent’s daughter. The Petitioner Siovla and Fiona will collectively be referred to as “Petitioners.”

On August 7, 2023, H.W. Spencer Hsieh (“Respondent”), Decedent’s former husband, filed a petition for revocation of probate of will, to suspend and remove Petitioner as executor of Decedent’s estate and trustee of a trust of Decedent’s executed in 2020, to determine interference with expected inheritance, and alleging claims for return of estate property, wrongful taking of estate property, conversion, elder abuse, fraud, misappropriation of estate property, breach of fiduciary duty, and constructive trust. Respondent asserts that Decedent executed a valid trust in 2022 a few days before she committed suicide and, therefore the 2020 will is not the operative will (“Respondent’s Petition”). The purported beneficiaries of the 2022 trust are Fiona Jivsov and Respondent. Petitioner has opposed Respondent’s Petition, contending, inter alia, that the trust proffered by Respondent is invalid on multiple grounds.

The court granted Petitioner’s unopposed request to bifurcate trial on Respondent’s Petition as follows: (1) phase one: Respondent’s standing, jurisdictional and procedural issues, and the preclusive effect of a Nevada court order invalidating the trust Decedent executed just days before her death and (2) phase two: the merits of Respondent’s Petition. After trial, the Honorable Jaqueline Duong issued an order finding in Petitioner’s favor as to phase one.

Thereafter, on February 25, 2026, Petitioner filed a memorandum of costs. On April 13, 2026, Petitioner filed a petition entitled “Petition for Order Awarding Costs, Reimbursement, and Return of Beneficiary Funds Against Respondent H.W. Spencer Hsieh” (“Cost Petition”). On July 14, 2026, Respondent filed an opposition to the Cost Petition.

Currently before the court is Petitioner’s Cost Petition. Currently before the court is the Cost Petition. On June 17, 2026, the Honorable Panteha Saban ordered that the Cost Petition be heard on the law and motion calendar. She also ordered that Respondent file his opposition on June 17, 2026. The opposition is improvidently titled, “HW Spencer Hsieh’s Opposition to Andrey Jivsov’s Notice of Motion and Motion to Tax Costs[.]” As will be discussed in more detail below, in a civil case, the party prevailing at trial generally files a memorandum of costs and the opposing party files a motion to strike or tax costs.

The Cost Petition previously came on for hearing on July 22, 2026 before the Honorable Eunice Lee, at which time this court continued the hearing to allow for consideration of Respondent’s untimely opposition to the Cost Petition. On August 17, 2026, Respondent filed an additional opposition to the Petition for Costs and on August 28, 2026 Petitioner and Fiona filed additional documents.

II. LEGAL ANALYSIS

A. PETITIONER'S MEMORANDUM OF COSTS

In his memorandum of costs, Petitioner sought a total of \$2,129.43 in costs as the prevailing party at trial, including \$915 for filing and motion fees, \$750 for court reporter fees, and \$464.43 in electronic filing and service fees.

1. *The Memorandum of Cost Procedure is Inapplicable in Probate*

In civil cases, a “prevailing party” is entitled, as a matter of right, to recover costs of suit in any action or proceeding. (Code Civ. Proc., § 1032, subdivision (a)). Code of Civil Procedure “Section 1033.5 specifies the items that are ‘allowable as costs under Section 1032.’ (§ 1033.5, subd. (a)).” (*Neeble-Diamond v. Hotel California By the Sea, LLC* (2024) 99 Cal.App.5th 551, 556). “Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation [and] . . . shall be reasonable in amount.” (Code Civ. Proc., § 1033.5, subd. (c)).

“Prevailing party” includes the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant. If any party recovers other than monetary relief and in situations other than as specified, the ‘prevailing party’ shall be as determined by the court, and under those circumstances, the court, in its discretion, may allow costs or not and, if allowed, may apportion costs between the parties on the same or adverse sides pursuant to rules adopted under Section 1034.

(Code Civ. Proc., § 1032, subd. (a)(4)).

To meet its initial burden, the party seeking costs need only submit a memorandum of costs with a statement by the attorney verifying that the costs claimed are correct and were necessarily incurred in the case. (*Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1267). “If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs.” (*Landas v. California State Auto. Assn.* (1993) 19 Cal. App. 4th 761, 774).

“A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first.” (Cal. Rules of Court, rule 3.1700(a)).

“Any notice of motion to strike or to tax costs must be served and filed 15 days after service of the cost memorandum. If the cost memorandum was served by mail, the period is extended as provided in Code of Civil Procedure section 1013. If the cost memorandum was served electronically, the period is extended as provided in Code of Civil Procedure section 1010.6 (a)(3).” (Cal. Rules of Court, rule 3.1700(b)(1)). “In the absence of an agreement, the court may extend the times for serving and filing the cost memorandum or the notice of motion to strike or tax costs for a period not to exceed 30 days.” (Cal. Rules of Court, rule 3.1700(b)(3)). But, “[a]fter the time has passed for a motion to strike or tax costs or for determination of that motion, the clerk must immediately enter the costs on the judgment.” (Cal. Rules of Court, rule 3.1700(b)(4)).

Here, the memorandum of costs was timely filed on February 25, 2026, less than 10 days after the court issued its order on February 19, 2026. Respondent did not timely file a motion to strike or tax costs.

That said, it appears that the memorandum of costs procedure and section 1032, et seq. do not apply to probate proceedings. (See *Estate of McCormack* (1969) 2 Cal.App.3d 492, 499 [“Costs in a probate proceeding are not awarded to the prevailing party as a matter of right but only within the discretion of the court.”]; see also *Estate of*

Neilson (1962) 57 Cal.2d 733 [Code Civ. Proc., § 1033 inconsistent with former Prob. Code, § 1232]). “It has been held that by reason of the fact that the subject of costs in probate proceedings is specially provided for, the general rules concerning costs as set forth in section 1021 et seq. of the Code of Civil Procedure do not apply to probate proceedings[.]” (*In re Estate of Erickson* (1935) 4 Cal.App.2d 602, 603, citing *Estate of Olmstead* (1898) 120 Cal. 447, 452).

“The general rules of the Code of Civil Procedure do not apply when the Probate Code provides special rules.” (*Urlick v. Urlick* (2017) 15 Cal.App.5th 1182, 1194-1195, internal citation and quotation marks omitted; see also Prob. Code, § 1000). Probate Code section 1002 provides, “Unless it is otherwise provided by this code or by rules adopted by the Judicial Council, either the superior court or the court on appeal may, in its discretion, order costs to be paid by any party to the proceedings, or out of the assets of the estate, as justice may require.” Accordingly, it appears that Probate Code section 1002 governs and Code of Civil Procedure section 1032, et seq. are inapplicable. (See *Hollaway v. Edwards* (1998) 68 Cal.App.4th 94, 99 [“although Code of Civil Procedure section 1032, subdivision (b) entitles a prevailing party in ordinary civil litigation to costs as a matter of right, the probate court retains discretion to decide not only whether costs should be paid, but also, if they are awarded, who will pay and who recover them. (Prob. Code, § 1002)”]).

Nonetheless, Petitioner has filed the Cost Petition seeking the same costs that were sought in the memorandum of costs.

B. THE COST PETITION

In the Cost Petition, Petitioners requested (1) the same \$2,129.43 in costs requested in the cost memorandum, (2) \$141 in costs related to a *lis pendens*, (3) return of \$15,500 allegedly by Respondent taken from a UnionBank Teen Access account, ending in 8465, which Petitioners contend was jointly held by Fiona and Decedent, and (4) return of \$12,500 allegedly taken by Respondent from a UnionBank Priority Banking account, ending in 8424, which was in Decedent’s name and which Petitioners contend Fiona is the sole beneficiary under the terms of the 2020 will. The Court notes that it appears to the court that Petitioner Andrey Jivsov is raising claims 1 and 2 and Petitioner Fiona Jivsov is making claims 3 and 4. (See Cost Petition, p. 1:23-2:11).

In general, an interested person may object to a petition in probate in writing at or before the hearing on the petition or the interested person may make an oral objection at the hearing. (Prob. Code, § 1043, subs. (a)-(b)). The court may grant a continuance for the purposes of allowing a written objection. Here, Respondent appeared via counsel at the hearing on the petition, which occurred on June 17, 2026. (Prob. Code, § 1043, subd. (b)). The court allowed Respondent to file a written objection by the end of that day. Respondent did not timely file his objection. “If the court continues a matter to allow a written objection or response to be made, and the responding or objecting party fails to serve and file a timely objection or response, the court may deem the objections or responses waived.” (Cal. Rules of Court, rule 7.801).

Here, again, Respondent’s opposition was untimely but the court has determined that the opposition should be considered on the merits. Accordingly, the court rejects Petitioners’ procedural arguments regarding the failure to oppose the memorandum of costs and the untimeliness of the opposition.

The court GRANTS Petitioners’ unopposed requests for judicial notice filed July 9, July 15, and August 28, 2026. (See Evid. Code, § 452, subd. (d)). The court DENIES Petitioners’ request for judicial notice filed July 20, 2026 as it appears to relate solely to the timeliness of Respondent’s filings.

1. Claim 1: Costs Requested in the Memorandum of Costs

As mentioned above, it appears that Probate Code section 1002 is applicable to the instant requests for costs. That section provides, “Unless it is otherwise provided by this code or by rules adopted by the Judicial Council, either the superior court or the court on appeal may, in its discretion, order costs to be paid by any party to the proceedings, or out of the assets of the estate, as justice may require.” (Prob. Code, § 1002). Petitioner seeks a total of \$2,129.43 in costs, including \$915 for filing and motion fees, \$750 for court reporter fees, and \$464.43 in electronic filing and service fees.

As to the \$915 in filing fees, this consists of \$420 for court fees advanced by Wheels of Justice, an electronic filing service, and \$495 in court paper filing fees. The \$464.43 in electronic filing and service fees consists of fees paid to Wheels of Justice for its services. Respondent contends that section 1033.5, subdivision (a)(1) only allows for reimbursement of filing fees charged by the court, not fees incurred for use of private vendors to electronically file documents. Section 1033.5, subdivision (a)(1) provides that “[f]iling, motion, and jury fees” are claimable as costs. As discussed above, it appears to the court that section 1033.5 does not apply. But, even assuming section 1033.5 did apply, Respondent ignores that section 1033.5, subdivision (a)(14) allows a party to claim as costs “[f]ees for the electronic filing or service of documents through an electronic filing service provider if a court requires or orders electronic filing or service of documents.” Accordingly, this argument is without merit as to the \$464.43 in Wheel of Justice fees. Nonetheless, the court finds that certain of the fees incurred in the \$464.43 are not properly chargeable to Respondent as will be discussed further below.

As to the \$495 in paper court filing fees, these fees were incurred according to Petitioner for the filing of his opposition to Respondent’s Petition and for the filing of his motion to strike portions of Respondent’s Petition. (See Memorandum of Costs, Ex. C). The filing fee for the opposition to Respondent’s Petition was necessarily incurred due to Respondent’s filing of the petition but the motion to strike was denied as procedurally improper and unmeritorious. (See Order re: Motion to Strike Portions of Petition Filed 8/7/23, filed November 8, 2023, p. 5:12).

Accordingly, the court disallows the \$60 in costs related to the motion to strike. As to the opposition to Respondent’s Petition, Respondent asserts that both he and Petitioner were granted fee waivers after the opposition was filed and that this precludes Petitioner from seeking these costs. He cites no authority indicating that a litigant who actually incurred a filing fee before he was granted a fee waiver may not seek reimbursement for such costs. Here, the court finds that the \$435 filing fee for the opposition to Respondent’s Petition is a recoverable cost and the interests of justice support shifting that fee to Respondent. Accordingly, the request for reimbursement of the \$435 filing fee is GRANTED.

As to the \$420 in filing fees, Petitioner lists the documents for which the fees were incurred in a table attached to the memorandum of costs. (See Memorandum of Costs, Ex. B). The court disallows the fees related to the motion to strike and the documents related to seeking removal of the guardian ad litem appointed for Fiona for the reasons discussed above. The remaining fees, totaling \$300 are GRANTED.

Respondent also contests Petitioner’s request for \$750 in court reporter fees. He asserts that Petitioner “previously sought reimbursement for a court reporter for a hearing on July 17, 2024, at which no hearing on this matter took place. [¶] Now, JIVSOV seeks payment from SPENCER for a court reporter on October 4, 2024. However, the hearing held on October 4, 2024, was at JIVSOV’s request, as he had objected to the appointment of a guardian ad litem for his daughter, FIONA, at a time when she was still a minor.” (HW Spencer Hsieh’s Objections and Opposition to Andrey and Fiona Jivsov’s Petitioner for Order Awarding Costs, Reimbursement, and Return of Beneficiary Funds, p. 5:26-6:4). He maintains that the hearing did not occur due to his bad faith but rather due to Petitioner’s request for a hearing.

Petitioner explains that the hearing for which he requests court reporter fees originally was scheduled to be heard on July 17, 2024 but it was continued to October 4, 2024. The invoice for the court reporter, which is attached to the memorandum of costs, shows that the hearing date was October 4, 2024. On that date, the court held an evidentiary hearing on the propriety of appointment of a guardian ad litem for Fiona other than Petitioner himself. Judge Duong initially appointed a guardian ad litem for Fiona sua sponte. (See Minute Order for hearing date April 17, 2024). Moreover, Respondent did not oppose Petitioner's request for reconsideration of that order. Accordingly, it would not be in the interest of justice to shift the fees for the court reporter to Respondent. The court DENIES the request for \$750 in court reporter fees.

As to the \$464.43 in Wheel of Justice fees, the court will again disallow the fees related to the motion to strike and attempt to remove Fiona's guardian ad litem, including the costs related to the filing and service of the request for court reporter for the October 4, 2024 hearing, as it would not be in the interest of justice to charge these fees to Respondent. Accordingly, the court disallows \$74.40 of the \$464.43 in Wheel of Justice fees. The court GRANTS the request for the remaining \$390.03.

Claim 1 is GRANTED IN PART in the amount of \$1,125.03. The remainder of Claim 1 is DENIED.

2. Claim 2: Costs for Expunging Lis Pendens

Petitioner seeks reimbursement in the amount of \$141 for the costs of recording an expungement of lis pendens. He relies on section 405.38, which provides, "The court shall direct that the party prevailing on any motion under this chapter be awarded the reasonable attorney's fees and costs of making or opposing the motion [to expunge lis pendens] unless the court finds that the other party acted with substantial justification or that other circumstances make the imposition of attorney's fees and costs unjust." (Code Civ. Proc., § 405.38). Petitioner cites no authority indicating that section 405.38 extends to provide for recovery of the cost of recording the expungement of lis pendens. By its terms, it appears that it only provides for recovery of attorney fees and costs incurred in making or opposing a motion to expunge lis pendens. Nonetheless, the court agrees with Petitioner that the interests of justice support shifting this cost to Respondent. For the same reason, the court has granted the filing and service fees related to the motion to expunge lis pendens above. Notably, Respondent recorded the lis pendens before he had filed Respondent's Petition, the filing he asserted contained a real property claim. As observed in the court's order granting Petitioner's motion to expunge lis pendens, a lis pendens requires the existence of a real property claim before recording. (See *Manhattan Loft, LLC v. Mercury Liquors, Inc.* (2009) 173 Cal.App.4th 1040, 1045; § 405.31 ["In proceedings under this chapter, the court shall order the notice expunged if the court finds that *the pleading on which the notice is based* does not contain a real property claim."])).

The court GRANTS Claim 2.

3. Claim 3: Reimbursement of \$15,500.00 and Claim 4: Reimbursement of \$12,500.00 Require an Evidentiary Hearing

As to claim 3, the request for reimbursement of \$15,500 and claim 4, the request for reimbursement of \$12,500, these claims are new substantive claims under Probate Code section 850. Petitioner Fiona seeks reimbursement of expenditures Respondent allegedly made from an account jointly held by Fiona and Decedent, ending in x8465 and an account solely in Decedent's name ending in x8424. She also seeks double damages under Probate Code section 859.

In his initial opposition filed July 14, 2026, Respondent stated only that these requests should be denied and he requested an evidentiary hearing. But, he did not state any defense to those claims nor did he dispute the facts stated by Petitioner. In his opposition filed August 17, 2026, Respondent now asserts that the accounts at issue are trust accounts and because Petitioner Andrey Jivsov has caused trust litigation to be filed in Nevada, the dispute

regarding reimbursement for funds allegedly taken from the accounts must be decided in Nevada. He requests dismissal of these claims.

The court declines to dismiss claims 3 and 4. Respondent points to Exhibit C attached to his August 17 opposition as evidence that the accounts at issue are trust bank accounts. Exhibit C is the “Schedule A” attachment for a trust, which normally would state the items the settlor intends the trustee to hold in trust. Respondent contends in the body of the opposition that Exhibit C is the schedule A for the now-invalidated 2022 trust but the notary form behind the schedule A is dated in 2020. (See August 17, 2026 Opposition, p. 3:23-24, Ex. C). It does not list any bank accounts nor does Respondent make any argument regarding how the language of any of the assets listed would encompass a bank account. Accordingly, the court will not dismiss claims 3 and 4 based on this argument.

The Probate Code contemplates an evidentiary hearing on a Probate Code section 850 claim. (See, e.g., Prob. Code, § 851 [governing notice for evidentiary hearing]). Additionally, Petitioner requests double damages under Probate Code section 859, which requires a finding of bad faith more appropriately addressed after an evidentiary hearing. Moreover, it appears that Petitioners are seeking discovery related to claims 3 and 4, suggesting that there may be more evidence bearing on the outcome of these claims as was presented in the Cost Petition and oppositions. Finally, Respondent has placed the issue of ownership of the accounts at issue via his August 17 opposition, thus an evidentiary hearing is required due to the dispute of fact. (See *Jackson v. Meyer* (2026) 121 Cal.App.5th 960, 967).

III. CONCLUSION

Based on the foregoing, Claim 1 is GRANTED IN PART in the amount of \$1,125.03. The remainder of Claim 1 is DENIED. Claim 2 is GRANTED. Respondent is ordered to pay to Petitioner a total of \$1,266.03 within thirty (30) days of this hearing. The Court will prepare the formal order.

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Calendar Line # 2
Case Name Esquivel Living Trust
Case No. 25PR201267
Motion to Compel I. <u>BACKGROUND</u> Petitioner Alberto Esquivel (“Petitioner”), co-trustee of the Esquivel Living Trust, initiated this case by filing a petition to remove his co-trustee Esther Lechuga, also known as Esther Esquivel Martinez (“Respondent”). The petition also seeks an accounting and surcharge of Respondent for alleged breaches of trust. Respondent opposed the petition. Currently before the court is Petitioner’s motion to compel further responses to her form and special interrogatories and request for production of documents. Respondent has opposed the motion and Petitioner has filed a reply. II. <u>DISCUSSION</u> A. PROCEDURAL BACKGROUND Petitioner served his form interrogatories, set one; special interrogatories, set one; and requests for production of documents on Respondent on February 9, 2026. On March 16, 2026, Respondent served her responses and produced some documents. On April 9, 2026, Petitioner sent Respondent a meet and confer letter. When Petitioner received no response to that letter, he submitted for filing a motion to compel on May 4, 2026. Respondent’s opposition to the motion appears to be responding to the May 4 version of the motion to compel as it states that the instant motion was filed on that date and it makes arguments related to requests for admission, which are not at issue in the instant motion. She also contends that Petitioner’s separate statement does not provide the text of her amended responses but the version of the separate statement before the court does include the amended responses. Respondent informed Petitioner that she had never received the meet and confer letter and Petitioner cancelled the motion before it was electronically filed. The parties ultimately agreed that Respondent would respond to Petitioner’s meet and confer letter by July 13, 2026 and the deadline to file the instant motion was extended to August 5, 2026. Respondent served a response to Petitioner’s meet and confer letter and amended responses to the discovery requests at issue on July 17, 2026. Petitioner filed the instant motion on August 5, 2026. B. THE MOTION MUST BE CONTINUED FOR PARTIES TO MEET AND CONFER Petitioner seeks further responses to his form interrogatories 2.6 and 17.1; special interrogatories 2, 3, 5-9, 13, 18, 20-22, 25-26, and 35; and requests for production of documents 3, 5, 10, 12, 17, 20-26, 29-31, and 33; and seeks production of responsive documents. In opposition to the motion, Respondent contends that Petitioner failed to adequately meet and confer because she did not meet and confer “in person, by telephone, or by videoconference” nor did she meet and confer regarding the necessity of a court reporter to report the hearing on the motion as required by Code of Civil Procedure section 2016.040. Section 2016.040 provides in relevant parts: (a) A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion. (b) The declaration shall also include whether the moving party has met and conferred, including through an electronic communication, regarding the retention of a certified shorthand reporter to